

Andaman Nicobar Chess Association

BYE LAWS

CONTENTS

	Page No .
1. Name of the Association	6
2. Registered Office	6
3. Jurisdiction	6
4.Business Hours	6
5.Objects of the Association	6-7
6. Affiliation to All India Chess Federation	7
7. Membership	7
7.1 Patrons	8
7.2 Life Members	8
7.3 Honorary Members	8
7.4 District Chess Association	8
7.4.1 Subscription of District Associations	8
7.5 Special Units	9
7.6 Academies	9
7.7 Corporate Members	9
8. Executive Committee	9
9. Duties and Powers of Executive Committee	10
10. Executive Committee Meeting	10
11. Notice of Committee Meeting	10
12. Emergency Executive Committee Meeting	10
13. Members of the General body	10
14. Powers and duties of the General Body Meeting	10
15. Notice of Annual General Body Meeting	11
16. Notice of Resolution	11
17. Extra-ordinary General Body Meeting	11

18. Quorum	11
19. Election	11
20. Voting	12
21. Emergency General Body Meeting	12
22. Amendments of Rules	12
23. Accounts	12
24. Financial Regulations	12
25. Sanction of Expenditure	12
26. Bank Accounts	12
27. Travelling Expenses	12
28. President and Vice Presidents	13
29. General Secretary and Joint Secretaries	13
30. Treasurer and Assistant Treasurer	13
31. Term of Office Bearers	13
32. Permission for Tournaments	13
33. Employees of the Association	14
34. Legal Recourse	14
35. Membership transfer within district Associations	14
36. Executive Secretary	14
37. Disciplinary Actions	14
37.1 Against Individuals	14
37.2 Against Members	15
37.3 Suo Moto Action	15
37.4 Appointing Ad Hoc Committee	15
38. Interim Vacancies	15
39. Dissolution	15
40. Dispute	16
41. Rules and regulation	16
42. Conclusion	16

THE CONSTITUTION AND BYE LAWS OF ANDAMAN NICOBAR CHESS ASSOCIATION

(Regd.No.689 dated 27.06.1989) Regulated by the Andaman Nicobar Islands Society Registration Act 1860

1. Name of the Society: The Association shall be called the Andaman Nicobar Chess Association (ANCA)

2. OBJECTIVE: The objective of the Association shall be to promote and improve the standard of chess in its jurisdiction and also among other purposes:

2(a) To arrange and manage the Andaman Nicobar Chess Championships and such other matches and tournaments as the committee of the Association (vide Rules 8 and 9) may consider desirable and to frame and publish rules and regulations for them and fix dates and places where such matches and tournaments shall be held;

2(b) To collect funds for the purposes of the Association and to employ them in such manner as the committee may deem desirable to further the objects of the Association;

2(c) To include such other activities as will be conducive to the growth of the objects of the Association;

2(d) To accept any gift of property, movable or immovable, free of encumbrance in furtherance of any of the objects of the Association.

2(e) To purchase, takeover, or otherwise acquire property movable or immovable and to acquire any rights or privileges which may be deemed necessary or expedient for the purpose of the Association.

2(f) To protect the interests of members / players / officials / monies and properties of the Association.

Definitions and Explanations:

1. **The Association:** Shall mean Andaman Nicobar Chess Association (ANCA)
2. **The emblem of the Association** shall be a Chess Board with pieces in a semi circle and abbreviation “ANCA” between two semi circles.
3. **“Member”** means either a patron, Life Member, Honorary Member, District Association, Special Unit, Academy or Corporate Member.
4. **“Chess”** means the game of chess, Rules of which are approved by the World Chess Federation (FIDE).
5. **“Bonafide resident”** in the jurisdiction of the Association means one who has been residing in that jurisdiction for not less than six months or employees of Government, local bodies, commercial concerns or other institutions who may have been transferred to any place within the jurisdictions of the Association.
6. (a) **“District Association”** means that association which organizes, administers and co-ordinates all chess activities in the revenue district in which it is situated. Each district is entitled to be represented on the State Executive by one elected representative from the district.

(b) **“Honorary Member”** is any person who is interested in the game and has rendered signal services to it.

(c) **“Special Units”** are those big institutions which are specially affiliated to the association.

(d) **“Academies”** are those institutions which promote chess among its members and the public and have coaching programmes.

(e) **“Corporate Members”** are those large business organizations which financially support the Association
7. **“Year”** shall mean the period of 12 months from 1st April to 31st March of the following year.
8. **“Office Bearers”** are the President, Vice Presidents, General Secretary, Joint Secretaries, Treasurer, Assistant Treasurer. All these posts are honorary without any Salary or Honorarium.

9. **“Bye-Laws”** shall mean the bye-laws of the Association for the time being in force.
10. **“Tournaments”** shall mean any chess tournament, championship, or matches whereat cups, prizes, rewards are competed for.
11. **“Committee”** means the Executive Committee (Rule 8)
12. **“Championship”** District, State, National and International Chess Championship for any category or Age Group recognized by ANCA, AICF and FIDE.
13. **“Affiliated Members”** The affiliated members of ANCA are the District Chess Associations functioning in the Districts of Andaman Nicobar Islands duly recognized and Affiliated to ANCA as per the Bye Laws.
14. **“Federation”** As far as the game of Chess in India is concerned, Federation shall mean All India Chess Federation.
15. **“FIDE”** Federation International Des Echecs - The International Chess Federation /World Chess Federation.
16. **“The General Body”** The General Body of Andaman Nicobar Islands State Chess Association shall consist of Office Bearers of ANCA and its affiliated District chess members.
15. **“Memorandum”** Means the Memorandum of Association of the registered society as originally framed and as amended, from time to time, in pursuance of the provisions of this Act;
16. **“Player”** The Chess player duly registered with the ANCA.
17. **“Patrons”** The General Body may elect any person who is interested in the game of chess and has rendered signal service to the game as patron of the ANCA.
18. **“Special Resolution”** A Resolution passed by a majority of not less than three fourths of the members of the Society entitled to vote as or present at a General Meeting convened specifying the intention to propose the Resolution as a Special Resolution has been duly given.
19. **“Official of ANCA”** Shall mean Coach, Trainer, Instructor, Manager, Arbiter or functionaries recognized by ANCA.

Andaman Nicobar Chess Association

Bye-laws

1. The Formation of the Society: The Andaman Nicobar Chess Association was formed in 1989 vide (Regd.No.689 dated 27.06.1989) Regulated by the Andaman Nicobar Islands Societies Registration Act 1860
2. Registered Office: The registered office of the Association is at 11 km Road Prem Nagar (Near Electricity site Office) Port Blair, Andaman & Nicobar Islands - **744102**.
3. The business hours of the Society shall be from 3.00 P.M to 07.00 PM on all working days except Saturdays, Sundays and Government holidays.
4. The Society is within the Jurisdiction of Registrar of Societies: The Society is now functioning under the jurisdiction of the Registrar of societies Andaman Nicobar Administration". The jurisdiction of the Association shall extend to the whole of Andaman & Nicobar Islands.
5. The objects of the Society: The objective of the Andaman Nicobar Chess Association shall be:
 - 5.1 To promote the game of Chess amongst the players, to increase their proficiency, to foster brotherhood among the players and to promote a chess culture.
 - 5.2 To maintain general control over the chess activities in Andaman & Nicobar Islands in accordance with this Constitution and the Rules and Regulations of the All India Chess Federation (AICF) and World Chess Federation (FIDE) in force from time to time.
 - 5.3 To promote formation of Organizations to promote the game of Chess within the jurisdiction of the State.
 - 5.4 To act as the State Apex Body of the affiliated Members and to co-ordinate their activities and organize and cause to organize Districts, State, National and International Championships, Technical Conferences and Coaching Camps.
 - 5.5 To receive and spend funds to promote the game of Chess in accordance with the Bye Laws of the Association.

5.6 To select the teams to represent the State and to promote, control and if necessary, finance the visits by such teams, players and officials.

5.7 To promote, control and if necessary, finance the visits of teams or coaches or individual players to participate in Nationals and Internationals.

5.8 To prepare and maintain a State Rank List of players.

5.9 To generally do such other acts and things as may be necessary or conducive for achieving the objects of the Association.

5.10 The activities would be purely charitable in nature and not motivated for profit.

5.11 The benefit of objects would be available to the general public irrespective of caste, creed, religion or sex.

5.12 To protect the interests of members / players / officials and properties of the Association.

6. To seek affiliation with All India Chess Federation.

7. MEMBERSHIP:-

a. The association membership fee shall be follows:-

- | | | |
|-----|----------------------|------------|
| i. | Annual Membership | Rs. 1000/- |
| | or | |
| ii. | Monthly subscription | Rs. 100/- |

b. The admission fee for each member shall be Rs.500/- only.

c. Any person who has attained above the age of 18 years will be allowed to become a member of the association. All the members of the association are eligible to vote and contest to managing committee in the General Body Meeting.

d. If the subscription of the member is in arrears for more than three months without satisfactory explanation to the Gen.Secretary, his/her name will be removed and the Executive Committee may reconsider his/her application for re-admission subject to all the arrears including the admission fee being paid. .

There shall be seven classes of members:

- 7.1 Patrons;
- 7.2 Life Members;
- 7.3 Honorary Members;
- 7.4 District Associations;
- 7.5 Special Units;
- 7.6 Academies; and
- 7.7 Corporate Members.

7.1 . Patrons: The General Body may elect any person who is interested in the game of chess and has rendered signal service to the game as patron of the ANCA. A patron shall be entitled to all the rights and privileges of the member but shall have no right to vote at meetings.

7.2 Life Member: On payment of a sum of Rs. 5000/- any person can be enrolled as a Life member.

7.3 Honorary Members: The General Body may by a majority of two thirds of those present at the concerned meeting elect as an Honorary Member any person who is interested in the game and has rendered signal services to it. A honorary member shall be entitled to all the rights and privileges of the member but shall have no right to vote at meetings.

7.4 District Association: District Chess Associations can become members or continue to be members if they have a written constitution, hold periodic election of office bearers, present audited accounts, conduct annual district championships, submit annual reports with details of players in each district championship conducted and have at least four affiliated clubs and taluks. The financial year of the District Association shall be 1st April to 31st March. Newly formed district associations, which are yet to audit their first annual accounts, yet to hold their district championships shall be given Temporary Membership. Till they become regular members they may participate in all activities of the Association but shall not have the right to vote at meetings.

7.4.1. Subscription of District Associations: The annual subscription shall be Rs.1000/- payable in advance in the month of April of each year or through monthly subscription of Rs 100 per month. If the affiliation fee is not paid on or before the 30th April, the defaulting member's name automatically stands removed from the rolls, i.e., automatically disaffiliated. Any member who is in arrears to the State Association shall not be entitled to any of the privileges of the Association.

7.5 Special Units: It shall be open to the Executive Committee to specially affiliate big institutions/Educational as SPECIAL UNITS. The Special Units will pay on annual subscription of Rs.2,500/- each. They would be required to sponsor one state championship every two years.

They can attend the meeting of the association but shall not have any voting rights.

7.6 Academies: The General Secretary may admit Academies or similar Institutions without any voting rights and get this ratified at the next Executive Committee Meeting. Such Academies or Institutions will pay an annual recognition fee of Rs.2,500/-. All such applications for recognition and their renewals, shall have to be recommended by the District Associations under whose jurisdiction they are situated.

7.7 Corporate Members: Corporate Membership shall be open to corporate bodies who donate at least Rs.10,000 per year. Corporate members shall be entitled to put up two banners at all Andaman Nicobar State Championships.

8. The Executive Committee: The affairs of the Association shall be managed by an Executive Committee comprising of:

- a. The President
- b. Four Vice Presidents
- c. One Gen. Secretary
- d. One Joint Secretary
- e. One Treasurer
- f. Eight Executive Members
- g. One representative from each District Associations

The members of the Executive Committee: (i). One representative each nominated by District Chess Association. (ii). All office bearers of the ANCA. (iii). One representative nominated by each Special Units (iv). State Champion (open) and State Champion (women)

9. Duties and Powers of the Executive Committee:

(a) to manage the affairs of the Association in general; (b) to device ways and means to improve the finances of the Association; (c) to arrange tournaments at such place, dates and time as deemed appropriate; (d) to make rules for the conduct of the tournaments; (e) to decide all matters relating to the affairs of the Association; (f) to take disciplinary action and (g) to make Budget estimate for the succeeding year;

10. Executive Committee Meeting:

The Executive Committee shall meet at least once in 3 months to dispose of normal business, e.g., (a) Confirmation of minutes of the previous meeting of the committee; (b) Passing of accounts for the previous three months; (c) Admission of members, and (d) to decide all matters relating to the affairs of the Association.

11. Notice of Committee meeting: Fifteen days notice shall be given for the meeting of the Executive Committee. Along with the meeting notice the General Secretary shall circulate the accounts which are to be passed.

12. Emergency Executive Committee Meeting: An Emergency Executive Committee Meeting may be called at three days notice by the General Secretary to decide on matters of an emergent nature. Notice may be sent through phone, email, Whats'App, ordinary post or courier.

13. Members of the General Body: The General Body of the Andaman Nicobar Chess Association consists of: (i). All office bearers of the ANCA. (ii). Two representatives nominated by the District Associations affiliated as Members of the ANCA. (iii) One representative nominated by each Special Units affiliated with ANCA. (iv) Patrons and Honorary Members. (v) Andaman Nicobar State Champion (Open) Men and Women. (Must be more than 18 years of age).

14. Powers and duties of the General Body: The General Body Meeting of the members shall be held annually at such time and place as the Executive Committee shall fix normally, provided that such a meeting shall be called on a date not earlier than 1st May and not later than 30th June. The following items of business shall be transacted: i) The Annual report of the Executive Committee; ii) Election of office bearers for the ensuing term; iii) Appointment of Auditor; iv) Passing of audited accounts; v) amend the constitution if necessary; vi) confirmation of budget; vii) to decide all matters relating to the affairs of the Association.

15. **Notice of Annual General Body Meeting:** Notice of Annual General Body Meeting shall be sent by Registered/Speed post, email, Whats'App or by courier to every member at least 15 days prior to the date of meeting. Such notice shall specify the date, time and place as well as the details of business to be transacted. In case of Annual General Body Meeting, the notice shall be accompanied by a copy of the Annual Report, Statement of Accounts for the preceding year and a budget estimate for the current year. Provided always that the accidental omission to give such notice to a member or its non-receipt by him shall not invalidate the proceedings of any General Body Meeting.

16. **Notice of Resolution:** Notice of at least 10 days shall be given to the General Secretary by a member of any resolution or motion sought to be moved at a General Body Meeting. Such resolution or motion shall be circulated by the General Secretary to all the members.

17. **Extra-Ordinary General Body Meeting:** An Extra-Ordinary General Body Meeting may be convened by a) the President, whenever he thinks fit and b) the General Secretary on a written requisition of 10 members within one month of requisition. The notice should be sent 15 days in advance specifying the business for which the meeting is to be convened. No other business shall be transacted at that meeting. If such a meeting is not called in accordance with the requisition, the requisitionists shall have power to call such meeting themselves. The General Secretary shall give at least 14 days notice for such meetings.

18. **Quorum:** The quorum of the General body meeting shall be 1/3 rd of the total membership of the Association.

19. **Election:** Nominations to the posts of office bearers of the Association should be sent so as to reach the General Secretary 14 days before the annual General Body Meeting. All such nominations received for the office bearers posts shall be circulated to the District Associations seven clear days before the date of the General Body meeting. The election of office bearers shall be by secret ballot if there is a contest. All candidates for the posts of office bearers, except that of the President, should be members of affiliated associations. Only two representatives of each affiliated District Chess Association can vote in the election of office bearers. In order to vote at a General Body meeting, an office bearer should represent a District Chess Association.

20. **Voting:** All business of a General Body Meeting and that of the Executive Committee Meeting shall be decided by a majority of votes: a) Each person eligible to vote at the General Body or Executive committee Meeting shall have one vote; b) In case of tie, the Chairman of the meeting shall have the casting vote; c) Members may send their votes by Proxy

21. **Emergency General Body Meeting:** An Emergency General Body Meeting may be called at 3 days notice by the General Secretary to decide on matters of an emergent nature. Notice may be sent through phone, email, or courier.

22. **Amendment of the Rules:** All amendment shall be made at a General Body Meeting by a resolution carried by a majority of at least two third of the members present at the meeting. Any amendment shall take effect from such time as decided at the meeting.

23. **Accounts:** The Financial year of the Association shall be from 1st April to 31st March. A statement of accounts for each year and a budget estimate for the ensuing year shall be prepared and completed by the Honorary Treasurer by 31st May.

24. **Financial Regulations:** The Financial Regulations may be altered and amended by the Executive Committee as it deems fit.

25. **Sanction of Expenditure:** a) The President shall have power to sanction expenditure up to Rs 5,00,000/- b) The Gen. Secretary shall have power to sanction expenditure up to Rs.1,00,000/-.

26. **Bank Accounts:** Bank Accounts shall be opened in such banks as may be approved by the committee in the name of the Association. They shall be jointly operated by the General Secretary together with Treasurer or one Vice President. Any sum in excess of Rs 25,000/- shall be paid into such account.

27. **Travelling Expenses :** The office bearers can charge bus fare to the Association when travelling for Association's work. In addition, each office bearer shall be paid a maximum allowance of Rs. 500/- per day.

28. President and Vice Presidents: The Executive Committee and General Body meetings shall be presided over by the President, and in his absence, by one of the Vice Presidents or by one of the Committee members to be elected as Chairman of the meeting. When it is not possible to convene meeting of the Executive Committee after giving notice, the President with the General Secretary, or any of the joint Secretaries, shall decide and act in emergencies and have such decision confirmed at the next meeting of the Committee.

29. General Secretary and Joint Secretaries: The General Secretary shall convene, take part, submit for confirmation and keep minutes of all the meetings. He shall have charge of all correspondence and records of the Association which shall be properly kept and handed over to his successor immediately after relinquishing office. Joint Secretaries will generally assist the General Secretary and act in his place during his absence. During the prolonged absence of the General Secretary, or if he/she is indisposed, the Executive Committee may nominate any person to officiate in place of the General Secretary under the title of "Acting General Secretary

30. Treasurer and Assistant Treasurer: The treasurer shall receive trophies, subscriptions, fees and donations and keep a regular account of receipts and disbursements. He shall submit at the end of the year a complete statement of accounts for the approval of the Executive Committee. The Treasurer will be responsible for all sums received by the Association from any source and he shall make all disbursements of the Association and shall issue receipts for them. The Treasurer shall prepare a budget for the ensuing year and submit it to the Annual General Body meeting for approval. The Assistant Treasurer will generally assist the Treasurer and act in his place during his absence.

31. Term of Office Bearers: (a). All office bearers shall hold office for a period of four years unless they resign their office earlier; (b). Office bearers shall be eligible for re-election to any office by a simple majority.

32. Permission for Tournaments: Only affiliates of ANCA and clubs affiliated to affiliates of the ANCA shall be given permission to run Open tournaments either by the ANCA or its affiliates.

However, District Chess Associations may, at their discretion, grant permission for Open Tournaments to reputed educational institutions.

33. Employees of the Association: The Association may employ “Assistants” including technical and service staff on monthly salaries and on terms and conditions to be laid down by the committee from time to time.

34. Legal Recourse: The General Secretary, if necessary, shall sue, or be sued, on behalf of the Association.

35. Membership transfer within District Associations: Any members of a district chess association who wishes to be a member of a different district chess association shall get a “No Objection” certificate from his association. No district association shall accept as a member any person who is a member of another district chess association without getting a “No objection” certificate from his previous district. If a “No Objection Certificate” is not given by a district association within three weeks of a player applying for it, the member may appeal to the ANCA which shall decide on the matter. However anybody can be a Life Member of more than one district association provided they declare whom they would represent in championships.

36. Executive Secretary: The President may appoint any person of his choice as Executive Secretary. The duties of the Executive Secretary shall be to assist the General Secretary and coordinate among all members and office bearers. He/She shall head the Association’s secretariat and shall attend all meetings of the Association on an advisory capacity, but will not have the right to vote. In short, he shall take care of the administration. He/ She will hold the post of Executive Secretary at the pleasure of the President. The Executive Secretary shall be paid a salary to be fixed by the President.

37. Disciplinary Action:

37.1 Against Individuals: On receipt of any complaint, it shall be open to the Executive committee to take disciplinary action against any member; any participant in any tournament conducted by the ANCA or affiliated units. In such cases, the person against whom disciplinary proceedings are contemplated shall be given a precise statement of the details of his delinquency and he shall be asked to submit his explanations within a specific period, but not less than a week. The letter calling for such explanation shall be sent by the General Secretary by “Registered Post Acknowledgement Due”. On receipt of such explanation, the General Secretary shall place all relevant papers for decision by the Executive Committee which shall record its finding and communicate

the same to the party concerned. In cases of non-receipt of the explanations within the specified time, it shall be open to the General Secretary to place all relevant papers before the Executive Committee for final decision and disposal. If necessary, the aggrieved party has always a right to appeal to the General Body within 60 days of the receipt of the decision of the Executive Committee. No member shall be expelled without a two third majority of members present at such a General Body Meeting voting for it.

37.2 Against Members: The General Body has the right to disaffiliate any member if no satisfactory reply is received from the General Secretary and the other office bearers of any affiliated association or special unit to registered notices sent to them by the General Secretary of this Association on the functioning of the member association with special reference to Rule 7.4 of the constitution. The General Secretary may appoint new District Chess Associations, which shall be affiliated to the State Chess Association. On such disaffiliation an adhoc committee may be set up vide rule 37.4

37.3 Suo Moto Action: If necessary, the Executive Committee can suo moto take action (to suspend from all chess activities, debar, impose penalties, etc.) against any player, official, district association, Academy, etc., who work against the interest of the association or if their actions have been detrimental to the growth of the game or the association or if they bring disrepute to the game.

37.4 Appointing Ad Hoc Committee: The Executive Committee, may also suo moto appoint an Ad Hoc Committee in place of a district chess association which works against the interest of the association if its actions have been detrimental to the growth of the game or the association of if they bring disrepute to the game. The Ad Hoc Committee shall consist of three to five members. This Ad Hoc Committee shall run the affairs of the district till it holds elections for electing office bearers. The President, in consultation with the General Secretary, may also take action under this Clause and report to the Executive Committee for ratification.

38. Interim Vacancies: All Interim vacancies of office bearers and committee members shall be filled by the Executive Committee.

39. Dissolution: In the event of the Association failing to carry on its activities, or on its dissolution, the assets of the Association shall be distributed to another association having similar objects.

40. Disputes: In all disputes, the decision of the Association shall be final and binding on all concerned.

41. Rules and Regulations: All Rules and Regulations framed for relevant purposes or on any matters and adopted by the Executive Committee and the General Body shall have the same force as this Constitution.

42. Conclusion: Any matter not directly covered by this Constitution shall be decided by the General Body/Executive Committee on the basis of the provisions in this Constitution most nearly applicable in accordance with the general terms and spirit of this.